

MILESTAMP — PILOT LICENCE & SERVICES AGREEMENT

DRAFT — FOR REVIEW. Prepared by the Provider for solicitor review. Yellow-highlighted items are blanks to complete before signature. Not to be signed in draft form.

This agreement is dated [DATE] and is made between:

(1) Nikita Bryant, an individual trading as **Milestamp**, of [ADDRESS] (the "**Provider**"); and

(2) [ALL OUT SALES — full legal entity name], a company registered in [STATE / COUNTRY, registration no.] whose principal address is [ADDRESS] (the "**Client**"), represented by **Ted [SURNAME]**, [TITLE, e.g. Owner / Managing Member].

Background

A. The Provider has independently developed **Milestamp**, a hosted software service that records a student's baseline, collects weekly check-ins, and gives a programme team a live view of student progress and risk (the "**Service**").

B. The Client operates the sales function of the **NLS Mentorship** programme (the "**Programme**") and pays for and controls the Programme's sales software, including the Close CRM.

C. The parties wish to run a pilot of the Service for the Programme on the terms below.

D. A separate one-page acknowledgment between the Provider and NLS [legal name of the NLS entity] (the "**NLS Acknowledgment**") covers student-data authority, Programme branding on student-facing pages, case-study and testimonial rights, and non-replication. This agreement and the NLS Acknowledgment are intended to be signed together.

1. Licence

1.1 The Provider grants the Client a non-exclusive, non-transferable licence to use the Service **for the Programme only**, for the Term of this agreement.

1.2 The licence does not include source code, the right to sub-license, or use of the Service for any other programme, brand, or client of the Client without a separate written agreement.

2. Term, pilot period and fees

2.1 "Go-Live Date" means the date the first real Programme student is enrolled into the Service. The parties will record the Go-Live Date by email on the day it happens.

2.2 The "**Pilot Period**" is the six (6) months from the Go-Live Date, used to measure the Service against the metrics in Schedule 1.

2.3 Fees: the Service is provided at no charge from the Go-Live Date until day 90. **From day 91, the fee is £99 (ninety-nine pounds sterling) per calendar month** [plus VAT if applicable], invoiced monthly by the Provider and payable within 14 days by [bank transfer / card — payment method].

2.4 On or before day 90 the Client will either (a) confirm continuation, in which case fees start on day 91; or (b) terminate under clause 9. **Continued use of the Service after day 90 counts as confirmation** and fees fall due — the pilot does not extend for free by silence.

2.5 If the Go-Live Date has not occurred by [1 October 2026], either party may end this agreement immediately by written notice, with nothing owed.

3. What the Provider delivers

3.1 Hosting and operation of the Service for the Programme, including the student intake, weekly check-in loop (email; SMS when enabled by the parties), student progress pages, and the team console.

3.2 Enrolment integration with the Client's Close CRM, triggered by the Client's chosen enrolment event.

3.3 Console access for the named team members listed in Schedule 1.

3.4 A weekly written summary (each Friday) to Ted and the Client's operational contact.

3.5 Reasonable-efforts support and fault-fixing during the Pilot Period. The Service is a pilot: no formal service-level agreement applies, but the Provider will act promptly on anything affecting students.

4. What the Client provides

4.1 Access to the Client's Close CRM sufficient for the enrolment trigger and any agreed sends, maintained for the Term.

4.2 A named operational contact (initially Cassie [SURNAME]) with authority to acknowledge interventions and receive the weekly summary.

4.3 Reasonable cooperation, including timely responses on pilot decisions and the day-90 confirmation in clause 2.4.

5. Intellectual property

5.1 The Service — including all software, source code, design, visual identity, documentation and the Milestamp name — is and

remains the **exclusive property of the Provider**. Nothing in this agreement transfers any ownership to the Client or the Programme.

5.2 The parties acknowledge that the Provider created the Service **independently, on his own time and equipment, outside the scope of any sales or contractor engagement** between the Provider and the Client (or between the Provider and any client of the Client), and that the Service is not work-for-hire or work product of any such engagement.

5.3 During the Term and for **12 months after** it ends, the Client will not — and will not assist or commission anyone else to — copy, clone, reverse-engineer, or build a substantially similar student check-in / progress-proof system derived from access to the Service.

5.4 Nothing in clause 5.3 prevents the Client from using generic CRM features or independently developed third-party tools that were built without reference to the Service.

6. Data

6.1 Student data collected through the Service belongs to the Programme. The Provider processes it solely to operate and improve the Service for the Programme, and as set out in the NLS Acknowledgment.

6.2 On termination, the Provider will supply an export of the Programme's student data (CSV or similar) within 14 days, and will delete it on written request after the export is confirmed received.

6.3 Students see Programme branding on all student-facing pages; the Provider's "Powered by Milestamp" footer credit remains.

7. Metrics and attribution

7.1 The Provider reports the following as the Service's own measures: weekly check-in response rate, documented saves (as defined in Schedule 1), and testimonials collected through the Service.

7.2 Any improvement in the Programme's refund rate or payment-plan completion during the Pilot Period is a **joint outcome** of the Client's sales and operations work and the Service; neither party will publicly claim such improvements as solely its own.

8. Confidentiality, warranties and liability

8.1 Each party will keep the other's non-public business information confidential and use it only for this agreement.

8.2 The Service is provided "as is" during the Pilot Period; the Provider does not warrant uninterrupted or error-free operation.

8.3 Each party's total liability under this agreement is capped at the fees paid or payable in the six months before the claim arose. Neither party is liable for indirect or consequential loss. Nothing in this agreement excludes liability that cannot lawfully be excluded.

9. Termination

9.1 Either party may terminate at any time on 14 days' written notice.

9.2 Either party may terminate immediately if the other materially breaches this agreement and does not fix the breach within 14 days of written notice.

9.3 On termination the licence ends; student links are deactivated after the data export in clause 6.2; and clauses 5, 6.2, 7.2 and 8 survive.

10. General

10.1 This agreement (with its Schedule and the NLS Acknowledgment) is the entire agreement about its subject matter. Changes must be agreed in writing.

10.2 Neither party may assign this agreement without the other's written consent.

10.3 This agreement is governed by the law of [England and Wales — solicitor to confirm vs the Client's US state], and the courts of that jurisdiction have exclusive jurisdiction.

Schedule 1 — Definitions and operational details

S1. "Save" means: a student flagged red by the Service, followed by a logged intervention, who returns to green within 21 days with their payment plan intact — written up in the week it happens and acknowledged by the Client's operational contact.

S2. Pilot metrics (measured across the Pilot Period): weekly check-in response rate; documented saves; testimonials collected; and — reported jointly under clause 7.2 — refund rate and payment-plan completion against the Programme's baseline.

S3. Named console users at signature: Nikita Bryant (Provider); Cassie [SURNAME] (Client); [Makenna — read access, optional].

S4. Enrolment trigger: [Close event, e.g. opportunity marked won in pipeline X].

S5. Invoicing details: Provider invoices from [email]; Client pays to [account details].

Signatures

Signed as an agreement on the date first written above.

Signed for the Provider

Signature
Nikita Bryant, trading as Milestamp
Date: _____

Signed for and on behalf of the Client

Signature
Ted [SURNAME], [TITLE], [ALL OUT SALES
entity name]
Date: _____

Draft prepared 11 July 2026. This document is a working draft for the parties' solicitors to review; it is not legal advice.